

HOUSE BILL 1761

By Gant

AN ACT to amend Tennessee Code Annotated, Section 8-50-119 and Title 68, Chapter 102, relative to public safety employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 102, Part 1, is amended by adding the following as a new section:

(a) Participation in the state's employee assistance program, including components for mental health and wellness, is available for all active members of a volunteer fire department and all active volunteer members of a combination fire department recognized under the Fire Department Recognition Act, compiled in part 3 of this chapter. This state shall pay all costs associated with such access.

(b) For purposes of this section, "employee assistance program" means a program that provides counseling, problem identification, intervention, assessment, or referral for appropriate diagnosis and treatment, and follow-up services to assist employees who are impaired by personal concerns, including, but not limited to, health, marital, family, financial, alcohol, drug, legal, emotional, stress, or other personal concerns that may adversely affect employee job performance.

SECTION 2. Tennessee Code Annotated, Section 68-102-304(2), is amended by deleting the language "as determined by the Tennessee Fire Incident Reporting System (TFIRS)".

SECTION 3. Tennessee Code Annotated, Section 68-102-304(4), is amended by deleting the language "by certified mail".

SECTION 4. Tennessee Code Annotated, Section 68-102-304, is amended by adding the following as a new subdivision (2) and redesignating the existing subdivisions accordingly:

(2) A fire department shall submit with an application, in a format prescribed by the state fire marshal's office, a list of active members of the department that includes, but is not limited to, name, mailing address, rank, public safety identification number (PSID), and birth date. The state fire marshal's office may require a more frequent periodic update of the department's membership list through electronic means of those departments participating in state grant programs, training or training incentive programs, or other state-related opportunities.

SECTION 5. Tennessee Code Annotated, Section 8-50-119(b)(3), is amended by deleting "full-time" and substituting "full-time or part-time".

SECTION 6. Section 1 and Section 5 take effect January 1, 2027, the public welfare requiring it. The remaining sections take effect upon becoming a law, the public welfare requiring it.